

FLOOR INTERIOR SERVICES, CORP. SERVICES AGREEMENT

This Contract is effective on the date indicated below (the “Effective Date”) between Floor Interior Services, Corp. and the Independent Contractor as defined below. The terms of this Contract govern, as applicable, real property improvements and the detail assessments of real property improvements provided by Independent Contractor to Floor Interior Services Corp. Customers (“Installation Services”). The term “Services” means Installation Services. The term “Lowe’s” means Lowe’s Home Centers, LLC.

Contact Information
Official Business Name of Independent Contractor (“Independent Contractor”)
Address:
City, State, Zip Code:
Email:

BY EXECUTING THIS CONTRACT, FLOOR INTERIOR SERVICES, CORP. AND INDEPENDENT CONTRACTOR AGREE TO THE TERMS SET OUT IN THIS CONTRACT AND ANY ATTACHMENTS, AND AGREE TO ARBITRATE ANY CONTROVERSY BETWEEN THEM, AS DESCRIBED IN SECTION 15.

Signatures	
For Independent Contractor: (include all owners, titled officers, or partners)	For Floor Interior Services:
Printed Name:	Printed Name:
Effective Date:	

This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

THE FOLLOWING ARE PART OF THIS CONTRACT: Performance of Installation Services (Attachment A), Schedule of Prices (Attachment B), Insurance Requirements (Attachment C), Independent Contractor Code of Conduct (Attachment D), Warranty Retainer (Attachment E), Service Requirements (Attachment F), Reference Guides (Attachment G).

FLOOR INTERIOR SERVICES, CORP. SERVICES AGREEMENT – General Terms and Conditions

1. STANDARD OF SERVICES.
 - a. Acceptance: Independent Contractor accepts an Order by the earlier of: (1) starting to provide Services; or (2) by affirmatively agreeing to perform the Order. Service Category and Service Location become part of this Contract and subject to the terms of this Contract upon acceptance of an Order, if not previously included. The performance of Services in accordance with any Order constitutes acceptance by Independent Contractor of any amended charges.
 - b. Workmanship: Independent Contractor shall perform the Services in a good and workmanlike manner and meet: (i) the applicable instructions (whether repair, installation or assessment related) issued by the Product Manufacturer; (ii) the Order's specifications and instructions; and (iii) the established trade practices in the area, and, at all times, comply with all applicable Legal Requirements.
 - c. Regulatory Compliance and Changes: Independent Contractor must comply with all Legal Requirements for the Term of this Contract. Independent Contractor shall assist Floor Interior Services, Corp. in its compliance with applicable Laws, rules, and regulations.
2. SUBCONTRACTORS. Independent Contractor remains responsible for the performance and quality of Services even if it uses subcontractors. Independent Contractor shall require its subcontractors to meet all requirements and qualifications and all Legal Requirements set forth in this Contract and will immediately notify Floor Interior Services, Corp. if its subcontractor no longer meets any requirement, qualification or Legal Requirement.
3. CERTIFICATES AND LICENSES. Independent Contractor states the following are true and that Independent Contractor will immediately notify Floor Interior Services, Corp. if the truth of any of these statements' changes:
 - a. that it has obtained all necessary licenses, certifications, registrations, and meets all experience, competence, skill, and other qualifications (collectively "Licensure") required by any governmental authorities to perform Services in the Repair Locations, including but not limited to lead paint firm and lead paint renovator certifications, as applicable, and
 - b. such Licensure is in the name of Independent Contractor's business, or an individual allowed by the Licensure authority to hold the Licensure on behalf of Independent Contractor, and
 - c. that it has not had any Licensure or permit suspended or revoked and has not otherwise been disciplined by any authority regulating the industry or trade in which Independent Contractor engages or practices.
4. OWNERSHIP OF GOODS FURNISHED BY FLOOR INTERIOR SERVICES, CORP OR LOWE'S. Independent Contractor has no ownership or security interest in any Goods furnished by Floor Interior Services, Corp. Or Lowe's for a Customer. Independent Contractor, (to the extent permitted by law);
 - a. hereby fully, unconditionally, and forever releases and waives any such interest that might arise as a matter of law;
 - b. states that Floor Interior Services, Corp. and/or Lowe's is the owner of all such Goods unless and until they are purchased by Lowe's Customers; and
 - c. holds such Goods earmarked for Orders in trust for the benefit of Floor Interior Services, Corp., Lowe's and its Customers as a bailee for hire.

Floor Interior Services, Corp. may, at any time, for any reason and without payment or notice of any kind, retake possession of any Goods furnished by Floor Interior Services, Corp. and/or Lowe's for a Customer. Independent Contractor grants to Floor Interior Services, Corp. a limited license to enter the premises where such Goods are stored so that Floor Interior Services, Corp. may retake possession. Independent Contractor waives any rights to a hearing or a court order as a prerequisite for Floor Interior Services, Corp. to take possession of such furnished Goods. Upon Floor Interior Services, Corp. request, Floor Interior Services, Corp. and/or Lowe's furnished Goods will be immediately released to Floor Interior Services, Corp. or delivered to Floor Interior Services, Corp. and/or Lowe's by Independent Contractor. Independent Contractor's continued holding of Goods furnished by Floor Interior Services, Corp. and/or Lowe's after Floor Interior Services, Corp. has made a request (verbal or written)

for the Goods will substantially impair the value of the Goods, and, accordingly, Independent Contractor stipulates that Floor Interior Services, Corp. will be entitled to a court order of possession without any need of proving damages or posting of a bond.

5. QUALITY OF SERVICES.

- a. Warranty Period for Installers. Unless stated otherwise in an Attachment to this Contract, Independent Contractor warrants that all Services performed are in a good and workmanlike manner and shall be free from (i) inaccuracies in measurements, product specifications and/or labor specifications for detail assessments for a period of one (1) year from completed detail date or (ii) defects in workmanship, for a period of one (1) year from completed installation date or for such greater period as may be required by applicable law.
- b. Manufacturer's Warranty. Where applicable, Independent Contractor will provide to the Customer any manufacturer's consumer warranty information related to any Services performed. Independent Contractor agrees to assign to Floor Interior Services, Corp. and/or Lowe's Customers any rights it obtains under any assignments, warranties, and indemnities given by its third-party subcontractors or suppliers in connection with any services, software, equipment or other products provided by Independent Contractor pursuant to this Contract to the extent permitted by the applicable subcontractors or suppliers. Independent Contractor further agrees that any warranties provided to Floor Interior Services, Corp. under this Agreement shall also extend to Floor Interior Services, Corp. Customers and assigns.
- c. Warranty Corrections. If a Customer makes a claim or if Floor Interior Services, Corp. determines in its sole discretion that a Customer could make a valid claim, Independent Contractor will remedy the defect promptly without cost to Floor Interior Services, Corp. or the Customer. If Independent Contractor fails to do so or Floor Interior Services, Corp. determines that the Independent Contractor's continued involvement is not in the Customer's best interest, Floor Interior Services, Corp. may have the defect corrected at Independent Contractor's expense. In such cases, Floor Interior Services, Corp. may withhold in whole or in part and use any funds owed then or in the future to Independent Contractor on any job as a set-off or recoupment for the cost of correcting the defect.
- d. Warranty Retainer. Independent Contractor agrees to maintain a Warranty Retainer with Floor Interior Services Corp. as described in Attachment E of this contract. Independent Contractor agrees to maintain a stated retainage amount for a period of one (1) year after the termination of this agreement. During that time, if a Customer makes a warranty claim or if Floor Interior Services, Corp. determines in its sole discretion that a Customer could make a valid claim and Floor Interior Services, Corp. determines that the Independent Contractor's involvement is not in the Customer's best interest, Floor Interior Services, Corp. may have the defect corrected at Independent Contractor's expense using funds from this retainage.
- e. Additional Warranty Obligations. Additional warranty obligations may be required, as further described in the FIS Independent Contractor Reference Guide (Attachment G).

6. INDEPENDENT CONTRACTOR. Independent Contractor and its employees and subcontractors are independent contractors and not employees of Floor Interior Services, Corp. Under NO circumstances shall Independent Contractor or its employees or subcontractors represent themselves as Floor Interior Services, Corp. employees or Lowe's employees. Independent Contractor has the full right to determine, and the responsibility for, the method, manner, and control of the work to be performed as specified in the applicable Orders, and Independent Contractor will employ sufficient competent adult workers to complete each Order promptly and satisfactorily. Independent Contractor has the exclusive right to hire, direct, supervise, and discharge any workers employed by Independent Contractor.

7. BACKGROUND CHECKS. In accordance with applicable Law,

- a. Independent Contractor will have criminal background checks ("**Check(s)**") performed on all of its Personnel who may (i) supervise the Services, (ii) perform details or assessments or Services, (iii) deliver Goods or

materials, or (iv) be present on the premises of any Floor Interior Services, Corp. Customer, Lowe's Customer or Lowe's Store for any reason.

- b. Independent Contractor will have everyone undergoing a Check sign an appropriate authorization and release which will be submitted along with any fee associated with the Check to a third-party provider of Checks of Floor Interior Services, Corp. choosing.
- c. Floor Interior Services, Corp. may request Independent Contractor re-perform Checks on any principal or Personnel at any time.
- d. Independent Contractor will not assign the performance of any Order to any Personnel who has not passed a Check as determined by the third-party provider of Checks.
- e. Independent Contractor will exclude any Personnel who do not pass a Check or refuse to or fail to submit to a Check from providing any Services and must not permit such Personnel on any Customer's or Lowe's Store Premises.
- f. During the term of this Contract, Personnel will visibly wear, while on jobsites and within Lowe's facilities, the security identification badge issued to Independent Contractor by a third-party provider of Checks of Floor Interior Services, Corp choosing. The identification badge will include photo identification, background check expiration, and renewal date.

8. **PRICING AND PAYMENT.** For Installation Services, Orders sent by Floor Interior Services, Corp. to Independent Contractor will contain the specifications for the job to be performed and the service charge to be paid to Independent Contractor. Service charges payable to Independent Contractor will initially be based on the negotiated schedule of Independent Contractor's charges that forms a part of this Contract as the Schedule of Prices (Attachment B).

After completion of the Order and subject to any recoupment, set-off, or other rights arising under this Contract or at law, Independent Contractor shall follow the invoice requirements in the Performance of Installation Services Attachment (Attachment A).

9. **INSURANCE.** Unless otherwise specified by Floor Interior Services, Corp., Independent Contractor will, at its own expense, procure and maintain during the term of this Contract, Commercial General Liability Insurance, Commercial Automobile Liability Insurance providing coverage for owned, hired and non-owned autos and Workers' Compensation and Employer's Liability Insurance with limits not less than those required pursuant to Attachment C. "Floor Interior Services, Corp" must be included as additional insureds under the commercial general liability policy, which must not exclude additional insured status under the products and completed operations coverage, and the commercial auto liability policy. Independent Contractor will furnish certificates of insurance or other evidence of such insurance coverage acceptable to Floor Interior Services, Corp. State Farm policy holders must furnish declaration pages evidencing coverage for all scheduled, hired and non-owned autos. Floor Interior Services, Corp. insurance requirements are in addition to, and do not in any way modify or limit, Independent Contractor's indemnification obligations under this Contract.

If the Independent Contractor insurance coverage does not ensure a claim as part of the Independent Contractor's policy and/or denies the claim, the Independent Contractor is still liable to reimburse Floor Interior Services, Corp. for any and all monies paid to remedy the claim. In such cases, Floor Interior Services, Corp. will remedy such claims as outlined in Section 5 of this agreement.

10. **TAXES.** Independent Contractor will assume full responsibility for and pay all ad valorem, license, franchise, occupation, and income taxes, contributions, assessments or fees imposed now or in the future upon the operation of Independent Contractor's business (including applicable sales to Floor Interior Services, Corp. and withholding from wages of its employees and from payments to its subcontractors, where required by law), and will secure all licenses, registrations and permits required for the operation of a business repairing Goods. In the event Independent Contractor supplies materials, Independent Contractor will, where required by law, pay all sales or use taxes with respect to its purchase of said materials.

11. **EMPLOYMENT.** If Independent Contractor is not required under any applicable Unemployment Compensation Act ("the Act") to operate under or become subject to such Act but is permitted to do so, Independent Contractor will duly elect to be governed by and operate under such Act. Independent Contractor agrees to comply with any other federal or state Law or regulation regarding compensation, hours of work, or other conditions of employment, including, but not limited to, federal or state Laws or regulations regarding minimum compensation, overtime, and equal opportunities for employment. Independent Contractor further agrees and represents that it is in compliance with the Immigration Reform and Control Act and has completed I-9 forms as required by this statute for each and every Personnel assigned to a Floor Interior Services, Corp. or Lowe's project.
12. **INDEMNITY.** To the extent allowed by law, Independent Contractor shall indemnify, defend, and hold harmless each Indemnitee against all Claims, Losses, and reasonable Expenses.
13. **NO GUARANTEED WORK.** Nothing in this Contract shall obligate Floor Interior Services, Corp. to provide any Order to Independent Contractor. Floor Interior Services, Corp. makes no promises or representations as to the potential number of jobs that may be available at any time during the term of the Contract. This is not an exclusive business relationship; Independent Contractor may accept similar work from nonparties, and Floor Interior Services, Corp. may ask other contractors to perform work similar or identical to that offered by Independent Contractor. Independent Contractor represents and warrants that it has not incurred and does not intend to incur any expense for additional personnel, facilities, equipment, or government authorization to engage and practice in applicable industries and trades, in reliance upon or in anticipation of receiving jobs from Floor Interior Services, Corp. Floor Interior Services, Corp. has no responsibility for expenses incurred by Independent Contractor in reliance on its business relationship with Floor Interior Services (for example, additional facilities, equipment, or Personnel).
14. **TERM.**
 - a. Automatic Renewal. The Term of this Contract shall be for one (1) year from the date this Contract is signed by Floor Interior Services, Corp and shall renew for additional successive periods of one (1) year each.
 - b. Termination. This Agreement is non-exclusive to both parties and may be terminated at any time by either party with or without written notice. The Independent Contractor obligations, representations, and warranties shall survive the termination of this Agreement.
 - c. Requirements upon Termination. In the event of a termination or notice of termination under this section the Independent Contractor further agrees to (i) complete within the time frame set forth in this Agreement all orders accepted by Subcontractor prior to the effective date of termination and complete such services, unless instructed by the Floor Interior Services Corp. to the contrary; (ii) perform all obligations which are to continue thereafter under the terms of this Agreement; deliver to the Floor Interior Services, Corp. all records maintained by Independent Contractor with respect to services performed and all Customer lists that were developed while operating hereunder, which lists are the exclusive property of the Floor Interior Services, Corp., and thereafter refrain from the use of such records and Customer lists or any information contained therein, or any other information Independent Contractor may have obtained as a result of the business conducted hereunder; (iii) relinquish any telephone number referencing the Company; (iv) return all forms and other materials bearing the Company's mark; and cease thereafter to represent, in any manner, that it is associated or connected with the Company. (v) return, within fifteen (15) days of termination or notice of termination under this Section, any identification badge issued.
15. **DISPUTE RESOLUTION.**
 - a. Mediation. All Disputes arising under or related to this Contract that cannot be resolved through negotiations between the Parties shall, as a condition precedent to any arbitration or court proceeding, be submitted to non-binding mediation according to this Section. The mediation shall take place in Tampa, Florida or such other mutually agreeable location. Notwithstanding the foregoing, either Party may seek and obtain an

injunctive relief from a court to preserve the status quo with respect to any matter pending conclusion of the mediation, but no such application to a court of law or equity shall in any way be permitted to stay or otherwise impede the progress of the mediation. This Section 15 shall not apply to Independent Contractor's obligations of indemnification under the "Indemnification" Section.

- b. Arbitration. Except as provided in this Section, the exclusive means of resolving all Disputes is through binding arbitration administered by the American Arbitration Association ("AAA") in accordance with the commercial arbitration rules. **Binding arbitration means that Floor Interior Services, Corp and Independent Contractor both waive: (1) the right to a jury trial; (2) the right to bring an action in any court (with the exception of the right to seek injunctive relief as set forth in Section 15(a) above); and (3) the right to seek relief in any other forum or from any other agency.** Only a court of competent jurisdiction may interpret the arbitration agreement set forth in this Section 15 and resolve challenges to its validity and enforceability. The arbitrator shall have no authority to make such determinations. With the exception of this Section 15, only the arbitrator shall have authority to interpret, enforce and adjudicate the remaining provisions of this Contract (as well as any other Disputes). The AAA rules governing arbitration are available at <http://www.adr.org>. Floor Interior Services, Corp. will also provide Independent Contractor with a paper copy of the AAA rules on request. The Parties shall cooperate in good faith to select one arbitrator. Each arbitration will be exclusively between Independent Contractor and Floor Interior Services, Corp. Neither Party may join, or consolidate a Dispute with, any arbitration commenced by a nonparty. Each arbitration will take place in Tampa, Florida or such other mutually agreeable location. Unless otherwise prohibited by law, each Party shall be responsible for its own filing fees and will share the fees and expenses of the arbitrator equally. Where fee and expense sharing are prohibited by law, Floor Interior Services, Corp. will pay all filing fees and arbitrator fees and expenses in accordance with applicable Law.
- c. Class and Representative Action Waiver. To the extent permissible by Law,
 - a. there shall be no right or authority for any dispute to be arbitrated as a class action or collective action **(this means that all disputes between Independent Contractor and Floor Interior Services, Corp. shall proceed in arbitration solely on an individual basis, and that the arbitrator's authority to resolve any dispute will be limited to claims between Independent Contractor and Floor Interior Services, Corp. alone);** and
 - b. there shall be no right or authority for any dispute to be arbitrated as a representative action or as a private attorney general action, including but not limited to claims brought pursuant to the Private Attorney General Act of 2004, Cal. Lab. Code § 2698, et. seq.
- d. Forum Selection. If the mandatory arbitration provision in Section 15(b) is held to have been waived or to be unenforceable, then the courts in Tampa, Florida will have exclusive jurisdiction over the applicable Disputes, and each Party hereby consents to the jurisdiction of those courts.
- e. Choice of Law. The arbitration agreement set forth in this Section 15, including the interpretation and enforceability thereof, shall be governed by the Federal Arbitration Act ("FAA"). If for any reason the FAA does not apply, the arbitration agreement contained in this Section 15 shall be governed by the laws of Florida without giving effect to any choice-of-law rules or borrowing statutes that may require application of another jurisdiction's Laws. For all other parts of this Contract, Florida law shall apply. The United Nations Convention on Contracts for the International Sale of Goods does not apply to this Contract, or the transactions executed under this Contract.
- f. Severability. If a court of competent jurisdiction finds the Class and Representative Action Waiver Section unenforceable for any reason, then that section shall be severed. Any claims covered by any unenforceable waiver provisions must be litigated in a court of competent jurisdiction, but the remainder of the Contract shall be binding and enforceable. No arbitrator shall have any authority to adjudicate any class, collective, or representative action.

- 16. **LIENS.** Independent Contractor, on behalf of itself, its Personnel, and to the extent permitted by law, fully and unconditionally relinquishes, waives and releases all mechanic's liens, materialmen's liens and other liens in the Premises of Floor Interior Services, Corp. and/or Lowe's Customers, which Independent Contractor or its

Personnel might have or acquire, as a result of providing Services in connection with this Contract. Independent Contractor will cause any lien on Customers' Premises filed by it, or its Personnel to be released and removed of record promptly upon being notified of their existence by Floor Interior Services, Corp., Lowe's or its Customer. In the event a lien is not removed within twenty (20) days of Independent Contractor receiving notice of its existence, Floor Interior Services, Corp. may, in addition to other remedies, withhold and use any funds owed then or in the future to Independent Contractor on any job as set-off or recoupment amounts sufficient to satisfy the lien and to pay any of Floor Interior Services, Corp. and its Customers' costs in releasing and removing the lien.

17. **REQUIREMENTS FOR PERSONAL INFORMATION.** Independent Contractor will implement appropriate technical and organizational measures to protect Personal Information against accidental or unlawful destruction or accidental loss, alteration, unauthorized disclosure or access, and against all other unlawful forms of processing. Independent Contractor shall promptly notify Floor Interior Services, Corp. if Independent Contractor has reason to believe that there has been a Breach. In the event of any Breach, Independent Contractor will cooperate fully with Floor Interior Services, Corp. to limit the unauthorized access, disclosure or use of such Personal Information, and seek the return of any such Personal Information. Independent Contractor shall not sell, retain, use, rent, disclose, disseminate, make available, transfer, or otherwise communicate orally, in writing, or by electronic or other means Personal Information for any purpose other than for the specific purpose of performing the Services, or for monetary or any other valuable consideration. Independent Contractor shall not retain, use or disclose the Personal Information outside of the direct business relationship between Floor Interior Services, Corp. and Independent Contractor. Independent Contractor will promptly and fully cooperate with any request made by Floor Interior Services, Corp. to assist in complying with any of Floor Interior Services, Corp. obligations under data protection laws and regulations.
18. **RECORDS.** Independent Contractor shall maintain during the term of this Contract and any successive periods thereof, and for five (5) years thereafter, or any longer period required by applicable law, copies of all Service Orders, invoices and other documentation related to Independent Contractor's performance of Repair Services and Independent Contractor's compliance with applicable laws, rules, regulations, orders, codes and standards as may be necessary to evidence its compliance with the terms of this Contract. At any time during the term of this Contract, and for a period of five (5) years after the final payment hereunder or longer if required by law, Floor Interior Services, Corp., or its designated agent, shall have the right to examine and audit up to five (5) years of the Independent Contractor's records (including without limitation, hard copy, electronic access, and computer-readable formats) with respect to any and all matters occurring within the five (5) year period prior to the request and relating to any and all of Floor Interior Services, Corp. payments under this Contract and Independent Contractor's compliance with Floor Interior Services, Corp. business ethics policies. Should Floor Interior Services, Corp. request such an audit, Independent Contractor agrees to fully cooperate with Floor Interior Services, Corp. in conducting the audit, including, but not limited to, allowing Floor Interior Services, Corp. to interview current and former employees and subcontractors; requiring third-parties with which Independent Contractor contracts or uses in performing Independent Contractor's obligations hereunder to provide the information requested hereunder by Floor Interior Services, Corp.; requesting such records from the third-parties; and providing adequate space and office and computer equipment to facilitate the audit. Should an audit reveal Independent Contractor's non-conformity with the provisions of this Contract or any invoice by which Independent Contractor requested payment, or that Independent Contractor knowingly violated any provision of Floor Interior Services, Corp. business ethics policies, then Floor Interior Services, Corp. will be entitled to (i) offset any excessive, unwarranted or misapplied payments against any currently due or future payments due under this Contract or Order, or (ii) demand reimbursement to Floor Interior Services, Corp. of the excessive, unwarranted and/or misapplied payments, which reimbursement Independent Contractor will make within twenty (20) business days after receipt of the written demand from Floor Interior Services, Corp.. Floor Interior Services, Corp. will also be entitled to demand and receive Independent Contractor's assistance and cooperation in pursuing, addressing, and rectifying Independent Contractor's violations of Floor Interior Services,

Corp. Floor Interior Services, Corp. business ethics policies. If the excessive, unwarranted and/or misapplied amount exceeds the lesser of either three percent (3%) of the valid amount or ten thousand dollars (\$10,000.00), then Floor Interior Services, Corp. will also have the right to offset or demand payment for all costs associated with the audit and examination, including, but not limited to reasonable legal and accounting fees.

19. **BENEFIT.** The terms of this Contract shall inure to the benefit of Floor Interior Services, Corp. It is agreed that Floor Interior Services, Corp. may bring any action for recourse or remedy sought by Floor Interior Services, Corp. It is further agreed that Independent Contractor shall be limited to seeking recourse or remedy exclusively from Floor Interior Services, Corp.
20. **MODIFICATIONS.** This Contract may only be amended, modified, or supplemented by an agreement in writing signed by each Party, except that Floor Interior Services, Corp. may, in its sole discretion, amend, modify, or supplement Attachments, provided that such amendments do not alter agreed-upon pricing terms. Such amendments can be made without amending the list of attachments appearing on first page of this contract.
21. **SEVERABILITY.** If a court of competent jurisdiction finds any provision of this Contract unenforceable for any reason, then that section shall be severed. Any claims covered by any unenforceable waiver provisions must be litigated in a court of competent jurisdiction, but the remainder of the agreement shall be binding and enforceable.
22. **ORDER OF PRECEDENCE.** This Contract consists of the signature page, these terms and conditions, and all Attachments and referenced documents. The Attachments contain supplemental information or terms and may modify these terms and conditions. If any Attachment contains terms that conflict with these terms and conditions, the terms and conditions contained in the Attachment shall prevail over these general terms and conditions.
23. **MISCELLANEOUS.**
 - a. This Contract is the parties' entire agreement relating to its subject and supersedes any prior or contemporaneous agreements on that subject.
 - b. Unless otherwise expressly set forth in this Contract, all notices must be in writing. Notices to Floor Interior Services, Corp. should be sent to: **compliance@floorinteriorservices.com, with a copy to Floor Interior Services, Corp., 4420 East Adamo Drive, Suite 203, Tampa, Florida 33605, Attention: Compliance Department**, with notices to Independent Contractor sent to the contact information provided on the first page of this Contract. Notice will be deemed given (i) when verified by written receipt if sent by personal courier, overnight courier, or mail; or (ii) when verified by automated receipt or electronic logs if sent by facsimile or email.
 - c. Those terms and provisions contained herein which by their terms are intended to survive a termination of this Contract shall remain effective.
 - d. Failure to enforce any provision will not constitute a waiver. If any provision of this Contract is found unenforceable, the balance of this Contract will remain in full force and effect.
 - e. Independent Contractor may not assign or transfer any part of this Contract, any such attempt to transfer or assign is void.
24. **GOVERNMENT FLOW DOWNS.** In the event any agreement between Floor Interior Services, Corp. and a federal, state, county, local government, or any department, agency or contractor of that government entity (both as of the Effective Date and any time after) requires that Floor Interior Services, Corp. include certain terms or conditions within this Contract, such terms and conditions are included in and form an integral part of this Contract upon Floor Interior Services, Corp. giving notice of the terms and conditions.

25. CONFIDENTIALITY. During the term of this Contract, the "Disclosing Party" may disclose or make available to the "Receiving Party" information about its business affairs, products, services, confidential intellectual property, trade secrets, third party confidential information and other sensitive or proprietary information, whether orally or in written, electronic or other form or media, and whether or not marked, designated or otherwise identified as "confidential" (collectively, "Confidential Information"). Confidential Information shall not include information that, at the time of disclosure: (i) is or becomes generally available to and known by the public other than as a result of, directly or indirectly, any breach of this Section 25 by the Receiving Party or any of its representatives; (ii) is or becomes available to the Receiving Party on a nonconfidential basis from a third party source, provided that such third party is not and was not prohibited from disclosing such Confidential Information; (iii) was known by or in the possession of the Receiving Party or its representatives before being disclosed by or on behalf of the Disclosing Party; (iv) was or is independently developed by the Receiving Party without reference to or use, in whole or in part, of any of the Disclosing Party's Confidential Information; or (v) is required to be disclosed under applicable federal, state or local Law, regulation or a valid order issued by a court or governmental agency of competent jurisdiction. The Receiving Party shall: (A) protect and safeguard the confidentiality of the Disclosing Party's Confidential Information with at least the same degree of care as the Receiving Party would protect its own Confidential Information, but in no event with less than a commercially reasonable degree of care; (B) not retain, sell, rent, disclose, use, or otherwise permit access to the Disclosing Party's Confidential Information, or permit it to be accessed or used, for any purpose other than to perform its obligations under this Contract; and (C) not disclose any such Confidential Information to any person or entity, except to the Receiving Party's representatives who need to know the Confidential Information to assist the Receiving Party, or act on its behalf, to perform its obligations under the Contract. Prior to receiving Confidential Information, the Receiving Party's permitted representatives must agree to confidentiality obligations at least as restrictive as those in this Section 25, including that the representative will not retain, disclose, or use Disclosing Party's Confidential Information for any purpose other than to perform the obligations under this Contract, and to process Personal Information under the same obligations set forth in Section 18. The Receiving Party shall be responsible for any breach of this Section 25 caused by any of its representatives. At any time during or after the Term of this Contract, at the Disclosing Party's written request, the Receiving Party shall promptly return, and shall require its representatives to return to the Disclosing Party all copies, whether in written, electronic or other form or media, of the Disclosing Party's Confidential Information, or at the Disclosing Party's request destroy all such copies and certify in writing to the Disclosing Party that such Confidential Information has been destroyed. In addition to all other remedies available at law, the Disclosing Party may seek equitable relief (including injunctive relief) against the Receiving Party and its representatives to prevent the breach or threatened breach of this Section 25 and to secure its enforcement.

INSTALLATION SERVICES AGREEMENT

Attachment A

PERFORMANCE OF INSTALLATION SERVICES

Independent Contractor agrees to perform flooring Installation Services for Floor Interior Services, Corp. Customers: These Installation Services are subject to the Floor Interior Services, Corp. Services Agreement, including all attachments, and any modification requirements.

1. Invoice Requirements: Before Floor Interior Services, Corp. will make payment, Independent Contractor shall submit within 45 days of the completion of the work:

- a. an invoice in a system and form approved by Floor Interior Services, Corp.,
- b. an executed lien waiver (to the extent required by applicable law),
- c. any applicable permits, inspections, or lead safe practices records (including the Lowe's checklist),
- d. any and all cash payments collected by the subcontractor from the customer on behalf of Floor Interior Services, Corp., and
- e. an executed Customer's Certificate of Completion.

Floor Interior Services, Corp. may withhold funds or refuse to pay any invoice pending review of any records (including without limitation the closing of permits) Floor Interior Services, Corp. may request to confirm the work has been properly completed in accordance with the Order and this Contract. Floor Interior Services, Corp. may allow Independent Contractor to use the ordering system to generate invoices electronically for purposes of this provision.

2. Performance of Installation Services:

- a. **Lead Safe Practices:** Independent Contractor will follow all applicable (i) Floor Interior Services, Corp. lead-based paint processes and procedures, and (ii) Lead Safe Practice Rules and other applicable Legal Requirements, which may be in addition to Floor Interior Services, Corp. processes and procedures.
- b. **Safety:** Independent Contractor shall act at all times with the safety of Customers or prospective Customers and Independent Contractors' Personnel foremost in mind and shall follow all applicable safety guidelines conforming to those required or recommended by federal, state, and local governmental or quasi-governmental authorities with jurisdiction Independent Contractor under this Contract, including, without limitation, all applicable guidelines and regulations issued by the federal Occupational Safety and Health Administration, similar state and local agencies, and the requirements of this Contract.

3. Building Permits: Unless the Service Locations are in Florida or Massachusetts, Independent Contractor shall obtain all required building or construction permits to the extent Independent Contractor is authorized to do so under applicable Law. In Florida and Massachusetts, Independent Contractor shall follow the direction of their local Floor Interior Services, Corp. contact with regard to obtaining permits. Under no circumstances, unless permissible under applicable Law and requested to do so in writing by Floor Interior Services, Corp., shall Independent Contractor request or require Customers to obtain permits. Independent Contractor shall maintain auditable records documenting its compliance with the these permitting requirements.

4. Independent Contractor Guide: Independent Contractor accepts and will follow the guidelines, including the payment of any required fees, set forth in the FIS Independent Contractor Reference Guide. Independent Contractor acknowledges and agrees that the FIS Independent Contractor Reference Guide is a part of, and incorporated into, this Contract.

5. Performance of the work:

- a. **Shortage of Goods -** In case of shortage of Lowe's Goods for any Order, Independent Contractor will arrange with the appropriate Floor Interior Services, Corp. representative for additional Goods to complete the Order.

- b. Return of Goods - After completion, Independent Contractor will return all excess Goods to the Lowe's store where the Order originated unless directed otherwise by Floor Interior Services, Corp. or the applicable Customer Contract.
 - c. Inspection of Goods - Independent Contractor will not install Goods containing defects and will notify Floor Interior Services, Corp. promptly of any such defective Goods.
 - d. Disposal of Goods - Additionally, Independent Contractor will not be authorized to use Lowe's dumpsters to dispose of any waste Goods and shall dispose of such Goods in compliance with all applicable governmental Laws, rules, and regulations.
6. Quality of Goods provided by Independent Contractor: Independent Contractor supplied goods shall be of good quality, substantially similar to the Goods supplied by Floor Interior Services, Corp and/or Lowe's or identical if required by the Customer contract, and sufficient to meet the warranty requirements of Floor Interior Services, Corp. and/or Lowe's supplied goods and any warranty that the Customer would receive. For example, carpet pad shall be of a sufficient quality to allow Customer to have the best warranty provided by the carpet manufacturer.
7. Change Orders:
- a. Independent Contractor will notify Floor Interior Services immediately
 - i. if a Customer requests different or additional Goods or Installation Services, or
 - ii. if Independent Contractor discovers an Undisclosed Condition on the Premises or a change in the condition of the Premises from what is reasonably expected in performing Installation Services in similar residences.
 - b. The Independent Contractor may not perform any change or addition requested by a Customer unless Floor Interior Services, Corp., Lowe's and the Customer execute a change order or new Customer Contract. If Independent Contractor performs such work, it will be deemed a material breach of this Contract and Independent Contractor shall assume full responsibility and liability for all such work and must advise Customer that said changes or additions will not be subject to Floor Interior Services, Corp. or Lowe's guarantees. Further, to the extent permitted by applicable Law, all leads and prospects for additional business in any way connected to any Orders are the property of Floor Interior Services, Corp., and Independent Contractor agrees to notify Floor Interior Services, Corp. of all such leads and prospects.
8. Removal from Service Location: Floor Interior Services, Corp. may immediately and without any liability prohibit Independent Contractor or any Personnel from performing work pursuant to any Order. In this event, Independent Contractor will cooperate with Floor Interior Services, Corp. to arrange for the immediate return of any Goods in Independent Contractor's possession or under Independent Contractor's control related to such Orders at Floor Interior Services, Corp. sole discretion.
9. Use of Floor Interior Services, Corp. or Lowe's Name or Authorized Independent Contractor: Independent Contractor will NOT use the Floor Interior Services authorized installer, Floor Interior Services authorized independent contractor, Lowe's authorized installer or Lowe's authorized independent contractor designation in or on telephone directory listings, business cards, internet websites, vehicles, or any other form of identification or advertising. However, Independent Contractor may use Floor Interior Services or Lowe's name to print or copy a completed Customer Contract or other documents in furtherance of this Contract.
10. Customer Contact and Leads for Additional Business: Except as directed by Floor Interior Services, Corp., Independent Contractor will not contact potential Customers at their homes or residences or via telephone, online or other means of marketing including, but not limited to unsolicited sales calls. Further, to the extent permitted by applicable law, all prospects for additional business resulting from or in any way connected to this Contract or any work or Customer Contracts are the property of Lowe's, and Independent Contractor agrees to notify Floor Interior Services, Corp. immediately of such prospects for additional business. Any sales arising out of contact with Customers or potential Customers shall be governed in all respects by the terms and conditions of this Contract.

11. Performance Reviews and Service Level Commitments: Floor Interior Services, Corp. will establish and review performance metrics for the Service Categories that Independent Contractor provides (performance metrics are included in Attachment F). Floor Interior Services and Independent Contractor will endeavor to review these annually.

FLOOR INTERIOR SERVICES, CORP. SERVICES AGREEMENT

Attachment B

SCHEDULE OF PRICES

The Floor Interior Services Corp.'s Representative will provide the Cost/Rate Sheet for Services containing the installation charges applicable to any Order. Unless the Cost/Rate Sheet states otherwise, the pricing for charges in each Cost/Rate Sheet is effective upon receipt and will stay in effect until agreed-upon pricing is changed within Floor Interior Services, Corp. systems and reflected upon purchase order information. Also, the Floor Interior Services Independent Contractor Reference Guide contains service expectations, metrics, fees and charges applicable to Independent Contractors providing Services.

INSTALLATION SERVICES AGREEMENT

Attachment C

INSURANCE REQUIREMENTS

1. Commercial General Liability

Per Occurrence Minimum	\$1,000,000
Damage to Rented Premises per Occurrence	\$100,000
Medical Expense (any one person)	\$5,000
Personal and Adv Injury	\$1,000,000
General Aggregate	\$2,000,000
Products/Completed Operations Aggregate	\$2,000,000

2. Commercial Auto Liability

Types of Policies

Non-State Farm policy requirements:	State Farm policy requirements:
1. Any Auto	1. Owned (Scheduled)
Or the combination of:	2. ENOL (Employer Non-Owned Liability) <i>Separate from Owned (Scheduled)</i>
1. Owned (Scheduled) 2. Hired 3. Non-Owned	Please reference your State Farm website for further assistance.
*Hired and Non-Owned coverage can be added to the General Liability Policy for both Non-State Farm and State Farm.	

Policy Limits

Combined Single Limit	\$300,000
<i>Or split items as follows</i>	
Bodily Injury per Person	\$100,000
Bodily Injury per Accident	\$300,000
Property Damage	\$50,000

3. Workers' Compensation and Employers Liability Limits

Bodily Injury each accident	\$1,000,000
Each Employee for Disease	\$1,000,000
Policy Limit for Disease	\$1,000,000

4. General Requirements

- a. Floor Interior Services, Corp. must be named as additional insured with respect to Commercial General Liability (including products liability) and Automobile Liability policies. A waiver of subrogation shall be provided to Floor Interior Services, Corp with respect to the Commercial General Liability, Products Liability and Automobile Liability. The Description of Operations must state the following:

"Floor Interior Services should be listed as an additional insured for ongoing and completed operations on a primary and noncontributory basis with respects to General Liability and an Additional Insured with respects to Auto Liability. Waiver of subrogation applies in favor of additional insured with respects to General Liability, Auto Liability and Workers' Compensation. Umbrella/Excess Policy should be following form over General Liability, Auto Liability and Workers' Compensation. 30 Day Notice of Cancellation applies in favor of additional insured with respects to General Liability, Auto Liability and Workers' Compensation."
- b. Commercial General Liability, Products Liability & Automobile Liability shall be endorsed to state coverage that is primary over any other available insurance.
- c. Policy must provide prior written notice of cancellation.
- d. Compliant certificates of insurance must be provided to Floor Interior Services, Corp. before any work and/or service shall commence. Insurance renewals must be submitted prior to expiration of current policies on file.
- e. Certificates must be signed by an authorized representative.
- f. No hand-written modifications to certificate will be accepted.
- g. Name of insured on certificate of insurance must appear exactly as name of contracting entity on Installation Services Agreement.
- h. Workers' compensation coverage is required under applicable federal, state, county and local regulations. If you believe that your firm is exempt, please discuss your specific situation with the FIS field representative. In the State of Florida, if you qualify for worker's compensation exemption, proof of worker's compensation exemption is required.

- i. Certificate Holder:
Floor Interior Services, Corp.
4420 E Adamo Drive Ste 203
Tampa, FL 33605

General Acord Listing

ACORD®		CERTIFICATE OF LIABILITY INSURANCE		DATE (MM/DD/YYYY) Date			
THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.							
IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).							
PRODUCER		CONTACT Agent Information					
Agent Information		NAME: _____ PHONE (A/C No. Ext): _____ FAX (A/C No.): _____ E-MAIL ADDRESS: _____					
INSURED		INSURER(S) AFFORDING COVERAGE					
Insured Information - Name on file with FIS		INSURER A: Insurers Name that matches policy below					
Matching FIS Installation Services Agreement		INSURER B: Insurers Name that matches policy below					
Address		INSURER C: Insurers Name that matches policy below					
City, State & Zip Code		INSURER D: _____					
		INSURER E: _____					
		INSURER F: _____					
COVERAGES		CERTIFICATE NUMBER:		REVISION NUMBER:			
THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.							
INSR LTR	TYPE OF INSURANCE	ADDL INSR	INSR WVD	POLICY NUMBER	POLICY EFF. (MM/DD/YYYY)	POLICY EXP. (MM/DD/YYYY)	LIMITS
A	☒ GENERAL LIABILITY ☐ COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR GEN'L AGGREGATE LIMIT APPLIES PER: ☒ POLICY ☐ PROJECT ☐ LOC	X	X	GL Policy # -No binder #'s	Dates	Dates	EACH OCCURRENCE \$ 1,000,000 DAMAGE TO RENTED PREMISES (Ea occurrence) \$ 100,000 MED EXP (Any one person) \$ 5,000 PERSONAL & ADV INJURY \$ 1,000,000 GENERAL AGGREGATE \$ 2,000,000 PRODUCTS - COMPIOP AGG \$ 2,000,000
B	☒ ANY AUTO ☒ ALL OWNED AUTOS ☒ HIRED AUTOS ☒ SCHEDULED AUTOS ☒ NON-OWNED AUTOS	X	X	AL Policy # -No binder #'s	Dates	Dates	COMBINED SINGLE LIMIT (Ea accident) \$ 300,000 BODILY INJURY (Per person) \$ 100,000 BODILY INJURY (Per accident) \$ 300,000 PROPERTY DAMAGE (Per accident) \$ 50,000
	UMBRELLA LIAB EXCESS LIAB DED \$ RETENTION \$						EACH OCCURRENCE \$ AGGREGATE \$
C	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	Y/N	N/A	WC Policy # - No binder #'s	Dates	Dates	☒ WC STATUTORY LIMITS ☐ OTHER E.L. EACH ACCIDENT \$ 1,000,000 E.L. DISEASE - EA EMPLOYEE \$ 1,000,000 E.L. DISEASE - POLICY LIMIT \$ 1,000,000
DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (Attach ACORD 101, Additional Remarks Schedule, if more space is required)							
Floor Interior Services should be listed as an additional insured for ongoing and completed operations on a primary and noncontributory basis with respects to General Liability and an Additional Insured with respects to Auto Liability. Waiver of subrogation applies in favor of additional insured with respects to General Liability, Auto Liability and Workers' Compensation. Umbrella/Excess Policy should be following form over General Liability, Auto Liability and Workers' Compensation. 30 Day Notice of Cancellation applies in favor of additional insured with respects to General Liability, Auto Liability and Workers' Compensation.							
CERTIFICATE HOLDER				CANCELLATION			
Floor Interior Services, Corp 4420 E Adamo Dr Suite 203 Tampa, FL 33605				SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS. AUTHORIZED REPRESENTATIVE Signature Required			
ACORD 25 (2010/05)				© 1988-2010 ACORD CORPORATION. All rights reserved.			
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Certificate must be received within 30 days of issue date

Highlighted limits are required

Combined Single limit OR Split limits are allowed

Include additional insured statement

Alternative Auto Listing



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)

Date

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER Agent Information	CONTACT NAME: Agent Information	
	PHONE (A/C, No, Ext):	FAX (A/C, No):
INSURED Insured Information - Name on file with FIS Matching FIS Installation Services Agreement Address City, State & Zip Code	E-MAIL ADDRESS:	
	INSURER(S) AFFORDING COVERAGE	
	INSURER A: Insurers Name that matches policy below	
	INSURER B:	
	INSURER C:	
	INSURER D:	
INSURER E:		
INSURER F:		

COVERAGES

CERTIFICATE NUMBER:

REVISION NUMBER:

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADOLISUBR INSR WYD	POLICY NUMBER	POLICY EFF. (MM/DD/YYYY)	POLICY EXP. (MM/DD/YYYY)	LIMITS	
A	GENERAL LIABILITY ☒ COMMERCIAL GENERAL LIABILITY ☒ Hired Auto ☒ Non-Owned Auto GEN'L AGGREGATE LIMIT APPLIES PER: ☒ POLICY ☐ PROJECT ☐ LOC	X	X	GL Policy # -No binder #'s	Dates	Dates	EACH OCCURRENCE \$ 1,000,000 DAMAGE TO RENTED PREMISES (Per occurrence) \$ 100,000 MED EXP (Any one person) \$ 5,000 PERSONAL & ADV INJURY \$ 1,000,000 GENERAL AGGREGATE \$ 2,000,000 PRODUCTS - COMPROP AGG \$ 2,000,000 Hired/Non-Owned \$ Limit
	AUTOMOBILE LIABILITY ☒ ANY AUTO ☒ HIRED AUTOS ☒ NON-OWNED AUTOS ☒ SCHEDULED AUTOS	X	X	GL Policy # -No binder #'s	Dates	Dates	COMBINED SINGLE LIMIT (Per accident) \$ 300,000 BODILY INJURY (Per person) \$ 100,000 BODILY INJURY (Per accident) \$ 300,000 PROPERTY DAMAGE (Per accident) \$ 50,000
	UMBRELLA LIAB EXCESS LIAB DED RETENTION \$						EACH OCCURRENCE \$ AGGREGATE \$ DED RETENTION \$
	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	Y/N	N/A				WC STATUTORY LIMITS \$ E.L. EACH ACCIDENT \$ E.L. DISEASE - EA EMPLOYEE \$ E.L. DISEASE - POLICY LIMIT \$

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (Attach ACORD 101, Additional Remarks Schedule, if more space is required)

Floor Interior Services should be listed as an additional insured for ongoing and completed operations on a primary and noncontributory basis with respects to General Liability and an Additional Insured with respects to Auto Liability. Waiver of subrogation applies in favor of additional insured with respects to General Liability, Auto Liability and Workers' Compensation. Umbrella/Excess Policy should be following form over General Liability, Auto Liability and Workers' Compensation. 30 Day Notice of Cancellation applies in favor of additional insured with respects to General Liability, Auto Liability and Workers' Compensation.

CERTIFICATE HOLDER

CANCELLATION

Floor Interior Services, Corp 4420 E Adamo Dr Suite 203 Tampa, FL 33605	SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.
	AUTHORIZED REPRESENTATIVE Signature Required

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State Farm Only – Auto Listings – State Farm must have at least 2 policies. One for ENOL (Hired and Non-Owned) and one for Scheduled autos.



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)

01/01/2022

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER	CONTACT NAME: Agent Information
Agent Information	PHONE (A/C, No, Ext): FAX (A/C, No):
	E-MAIL ADDRESS:
	INSURER(S) AFFORDING COVERAGE
	NAIC #
INSURED	INSURER A:
Insured Information - Name on file with FIS	INSURER B:
Matching FIS Installation Services Agreement	INSURER C:
Address	INSURER D:
City, State & Zip Code	INSURER E:
	INSURER F:

State Farm Only**COVERAGES****CERTIFICATE NUMBER:****REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSR	SUBR WYD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS
A	GENERAL LIABILITY ☒ COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR GENL AGGREGATE LIMIT APPLIES PER: ☒ POLICY ☐ PRO-ECT ☐ LOC	X	X	GL Policy # -No binder #'s	Dates	Dates	EACH OCCURRENCE \$ DAMAGE TO RENTED PREMISES (Ea occurrence) \$ MED EXP (Any one person) \$ PERSONAL & ADV INJURY \$ GENERAL AGGREGATE \$ PRODUCTS - COMPROP AGG \$ \$
A	AUTOMOBILE LIABILITY ☐ ANY AUTO ☐ ALL OWNED AUTOS ☒ HIRED AUTOS ☒ SCHEDULED AUTOS ☒ NON-OWNED AUTOS	X	X	ENOL Policy # Scheduled Auto Policy #	Dates	Dates	COMBINED SINGLE LIMIT (Ea accident) \$ BODILY INJURY (Per person) \$ BODILY INJURY (Per accident) \$ PROPERTY DAMAGE (Per accident) \$ \$
	UMBRELLA LIAB ☐ EXCESS LIAB ☐ DED ☐ RETENTION \$						EACH OCCURRENCE \$ AGGREGATE \$ \$
	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	Y/N	N/A				WC STATUTORY LIMITS OTHER E.L. EACH ACCIDENT \$ E.L. DISEASE - EA EMPLOYEE \$ E.L. DISEASE - POLICY LIMIT \$

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (Attach ACORD 101, Additional Remarks Schedule, if more space is required)

Floor Interior Services should be listed as an additional insured for ongoing and completed operations on a primary and noncontributory basis with respects to General Liability and an Additional Insured with respects to Auto Liability. Waiver of subrogation applies in favor of additional insured with respects to General Liability, Auto Liability and Workers' Compensation. Umbrella/Excess Policy should be following form over General Liability, Auto Liability and Workers' Compensation. 30 Day Notice of Cancellation applies in favor of additional insured with respects to General Liability, Auto Liability and Workers' Compensation.

CERTIFICATE HOLDER**CANCELLATION**

Floor Interior Services, Corp 4420 E Adamo Dr Suite 203 Tampa, FL 33605	SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS. AUTHORIZED REPRESENTATIVE Signature Required
--	---

ACORD 25 (2010/05)

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State Farm Only – Auto Listings – continued



VEHICLE OR EQUIPMENT CERTIFICATE OF INSURANCE

DATE (MM/DD/YYYY)

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

This form is used to report coverages provided to a single specific vehicle or equipment. Do not use this form to report liability coverage provided to multiple vehicles under a single policy. Use ACORD 25 for that purpose.

PRODUCER	CONTACT NAME PHONE (A/C, No, Ext): FAX (A/C, No): E-MAIL: ADDRESS: PRODUCER CUSTOMER ID #:
INSURED	INSURER(S) AFFORDING COVERAGE INSURER A: INSURER B: INSURER C: INSURER D: INSURER E:

State Farm Agent Information

Insured Information

Scheduled Auto Information

DESCRIPTION OF VEHICLE OR EQUIPMENT

YEAR	MAKE / MANUFACTURER	MODEL	BODY TYPE
DESCRIPTION		VEHICLE / EQUIPMENT VALUE	SERIAL NUMBER

COVERAGES

CERTIFICATE NUMBER:

REVISION NUMBER:

THIS IS TO CERTIFY THAT THE POLICY(IES) OF INSURANCE LISTED BELOW HAS/HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD(S) INDICATED, NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICY(IES) DESCRIBED HEREIN IS/ARE SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICY(IES).

INSR LTR	ADOL INSRD	TYPE OF INSURANCE	POLICY NUMBER	POLICY EFFECTIVE DATE (MM/DD/YYYY)	POLICY EXPIRATION DATE (MM/DD/YYYY)	LIMITS
	X	VEHICLE LIABILITY	ENOL			COMBINED SINGLE LIMIT \$ BODILY INJURY (Per person) \$ BODILY INJURY (Per accident) \$ PROPERTY DAMAGE \$ EACH OCCURRENCE \$ GENERAL AGGREGATE \$
		GENERAL LIABILITY				
		OCCURRENCE				
		CLAIMS MADE				
INSR LTR	LOSS PAYEE	TYPE OF INSURANCE	POLICY NUMBER	POLICY EFFECTIVE DATE (MM/DD/YYYY)	POLICY EXPIRATION DATE (MM/DD/YYYY)	LIMITS / DEDUCTIBLE
		VEH COLLISION LOSS				☐ ACV ☐ AGREED AMT \$ LIMIT ☐ ☐ STATED AMT \$ DED
		VEH COMP ☐ VEH OTC				☐ ACV ☐ AGREED AMT \$ LIMIT ☐ ☐ STATED AMT \$ DED
		EQUIPMENT				☐ ACV ☐ AGREED AMT \$ LIMIT ☐ RC ☐ STATED AMT \$ DED
		BASIC ☐ BROAD				
		SPECIAL ☐				
	X	Scheduled Auto				Limits

Scheduled Auto Policy #

Scheduled Auto

Limits

REMARKS (INCLUDING SPECIAL CONDITIONS FOR COVERAGES) (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

ADDITIONAL INTEREST

Select one of the following:

☒ The additional interest described below has been added to the policy(ies) listed herein by policy number(s).
☐ A request has been submitted to add the additional interest described below to the policy(ies) listed herein by policy number(s).

VEHICLE / EQUIPMENT INTEREST: ☐ LEASED ☐ FINANCED

NAME AND ADDRESS OF ADDITIONAL INTEREST

Floor Interior Services, Corp
4420 E Adamo Dr
Suite 203
Tampa, FL 33605

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

DESCRIPTION OF THE ADDITIONAL INTEREST

☒ ADDITIONAL INSURED ☐ LOSS PAYEE
☐ LENDER'S LOSS PAYABLE

LOAN / LEASE NUMBER

AUTHORIZED REPRESENTATIVE

Signature Required

ACORD 23 (2016/03)

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FLOOR INTERIOR SERVICES, CORP. SERVICES AGREEMENT

Attachment D

INDEPENDENT CONTRACTOR CODE OF CONDUCT

This Independent Contractor Code of Conduct ("Code") applies to all Independent Contractors who provide services to Floor Interior Services, Corp. Independent Contractors must be committed to the highest standards of ethical conduct in their business practices. This Code sets forth the basic requirements that all Independent Contractors must comply with in order to do business with Floor Interior Services, Corp. If Floor Interior Services, Corp. believes that any Independent Contractor has violated this Code, Floor Interior Services, Corp. has the right to terminate its business relationship with the Independent Contractor and to proceed to secure any and all rights or remedies available. Floor Interior Services, Corp. reserves the right to make reasonable changes to the Code's requirements.

A. Business Integrity and Ethics

1. **Compliance with Laws:** Independent Contractors must fully comply with all applicable laws and regulations.
2. **Conflicts-of-Interest:** Independent Contractors shall not engage in any activity which could create either the appearance of, or an actual conflict-of-interest, between the personal interests of Floor Interior Services, Corp. associates or their immediate family members and Floor Interior Services, Corp. interests.
3. **Gifts and Benefits:** Floor Interior Services, Corp. prohibits Independent Contractors from giving gifts or entertainment exceeding nominal value to Floor Interior Services, Corp. associates or their immediate family members. The following types of gifts and entertainment may never be offered, regardless of value: cash or cash equivalents (i.e. gift cards); gifts that are or could be illegal; gifts or entertainment (including meals, transportation and travel accommodations) offered in connection with an inspection, audit, or during a negotiation process involving the Independent Contractor, or anything offered to an agent or consultant working on behalf of Floor Interior Services, Corp. in connection with an inspection, audit, or negotiation process involving the Independent Contractor. This policy remains in effect during traditional gift-giving seasons.
4. **Anti-Corruption:** Independent Contractors must not tolerate, permit, sanction, or engage in bribery, corruption or unethical practices whether in dealings with public officials, or individuals in the private sector. Independent Contractors must comply with all applicable anti-corruption laws and regulations, including the United States Foreign Corrupt Practices Act ("FCPA"), in connection with the provision of any goods or services to Floor Interior Services, Corp.
5. **Subcontracting:** In the event that Independent Contractors are permitted to use subcontractors in accordance with the terms of any agreement with Floor Interior Services, Corp., Independent Contractors shall ensure that any such subcontractors comply with the Code in FLOOR INTERIOR SERVICES, CORP. SERVICES AGREEMENT connection with providing goods or services to Floor Interior Services, Corp. Independent Contractors shall not retain any subcontractor that fails to comply with the Code.
6. **Confidential Information:** Independent Contractors are expected to respect and protect Floor Interior Services, Corp. intellectual property rights, and to maintain the confidentiality and security of any information entrusted to them by Floor Interior Services, Corp. or its customers, unless otherwise expressly permitted by the terms of any agreement with Floor Interior Services, Corp.
7. **Information Privacy and Security:** Independent Contractors must protect information security with proper technical, physical, and administrative measures. Independent Contractors are expected to
8. respect and protect the information privacy of individuals whose personal information is entrusted to them, directly or indirectly, by these individuals or by Floor Interior Services, Corp. Independent Contractors may only use, retain, and disclose entrusted information for the purpose of conducting business with Floor Interior Services, Corp. or as otherwise permitted by Floor Interior Services, Corp. Independent Contractors must comply with all applicable privacy and data security laws.
9. **Fair Dealing:** Independent Contractors must not manipulate, conceal, or misrepresent facts, misuse information, or otherwise act illegally, unfairly, dishonestly or unethically.

10. **Fair Competition:** Independent Contractors must adhere to any applicable fair competition laws prohibiting activities that restrain trade and create anticompetitive markets.

B. Labor, Health and Safety

1. **Forced Labor:** Independent Contractors shall not use any form of forced, bonded, indentured, trafficked, slave, or prison labor, except for government approved programs that utilize convicts or prisoners on parole, on supervised release, on probation, or in any penal or reformatory institution. All work must be voluntary, and workers shall be free to leave work or to terminate their employment. Independent Contractors must not require workers to surrender any government-issued identification, passport, or work permit as a condition of employment.
2. **Child Labor:** Child labor is strictly prohibited. Independent Contractors shall hire workers who meet at least the legally specified minimum age for employment. No worker may be hired under the age of 15.
3. **Working Hours:** Working hours are not to exceed the maximum set by local law.
4. **Employment Practices:** Independent Contractors must have hiring practices that accurately verify a worker's legitimate eligibility to work.
5. **Compensation:** Independent Contractors shall pay all workers at least the minimum wage and benefits required by any applicable laws and regulations. Workers shall also be compensated for overtime hours at the rate required by any applicable laws and regulations.
6. **Non-Discrimination:** Independent Contractors shall follow all applicable laws and regulations and shall prohibit discrimination or harassment on the basis of sex, race, color, religion, national origin, age, disability, marital status, gender identity, gender expression, or sexual orientation. All Independent Contractors are expected to maintain a working environment free from discrimination or harassment.
7. **Diversity and Inclusion:** Floor Interior Services, Corp. expects Independent Contractors to foster a culture and working environment that value and respect worker diversity and inclusivity.
8. **Fair Treatment:** Independent Contractors are expected to maintain a working environment free from harassment and abuse. No form of physical, sexual, psychological or verbal abuse or harassment shall be tolerated.
9. **Health and Safety:** Independent Contractors shall provide all workers with a safe work environment, appropriate personal protective equipment, workplace health and safety information, and relevant health and safety training.
10. **Environmental Permits:** Independent Contractors shall obtain and comply with all required environmental permits, including any regular reporting obligations.

FLOOR INTERIOR SERVICES, CORP. SERVICES AGREEMENT

Attachment E

Warranty Retainer

1. **Warranty Retainer.** As a part of the Installation Services Agreement, the Independent Contractor agrees to maintain a Warranty Retainer with the Floor Interior Services, Corp., the retainage amount shall be determined by the type of installation services provided and the number of Subcontractor's crews:
 - a. Carpet and Vinyl Installation – \$3000 per crew.
 - b. Ceramic and Wood/Laminate Installation – \$4000 per crew
2. **Withholding.** Beginning with installers first payment Floor Interior Services, Corp, will withhold ten percent (10%) of the Independent Contractors fee, defined in Section 1 of this Attachment, until the retainage has been fully withheld or the full amount will be due immediately upon termination of this agreement, if the retainage amount in Section 1 has not been met and the Independent Contractor has completed at least one (1) order for Floor Interior Services, Corp. To satisfy this Retainage shortfall any unpaid Independent Contractor fees may be withheld by Floor Interior Services, Corp.
3. **Use of Funds.** Warranty Retainer funds are to only be used after the termination of this agreement as stated in Section 5(d) and Section 9 of the Floor Interior Services, Corp. Services Agreement General Terms and Conditions. If this agreement has not been terminated, then the claim remedy will be considered a Warranty Correction as outlined in Section 5(c) of the Floor Interior Services, Corp. Services Agreement General Terms and Conditions.
4. Should the amount of a Customer claim exceed the value of the Independent Contractor's Warranty Retainage, at Floor Interior Services, Corp. request, the Independent Contractor shall issue a check or other form of payment acceptable to Floor Interior Services, Corp. within fifteen (15) days of being notified of the amount due to satisfy the claim.
5. Upon request, the balance of unused Retainage shall be returned to the Subcontractor one (1) year after termination of this Agreement and all pending claims opened prior to this date have been closed.

FLOOR INTERIOR SERVICES, CORP. SERVICES AGREEMENT

Attachment F

SERVICE REQUIREMENTS

Service expectations, scorecard and metrics for Installation Services. The Floor Interior Services, Corp. Representative will provide any applicable installation-specific Performance Reviews and Service Level Commitments. These requirements will stay in effect until changed by Floor Interior Services, Corp. Additionally, the Floor Interior Services, Corp. Installer Reference Guide contains service expectations, metrics, nonnegotiable fees and charges applicable to Independent Contractors providing Installation Services. Without limitation, these fees include:

- a. **Administration Fee:** On a per job basis, Floor Interior Services, Corp. will assess, in the form of a debit, an Administrative Fee ("Admin. Fee") of 75 basis points (0.75%) against the Independent Contractor's open payable balance for each job. The Administration Fee is calculated by multiplying the total labor dollars paid by 0.75% and will be assessed for each job/order. Funds from the Administration Fee will be used at Floor Interior Services, Corp. discretion in administering Floor Interior Services, Corp. Services programs. Floor Interior Services, Corp. may modify the amount of the Administration Fee at its discretion.

FLOOR INTERIOR SERVICES, CORP. SERVICES AGREEMENT

Attachment G

Reference Guides

For Installation Services, the Floor Interior Services Independent Contractor Reference Guide can be obtained upon request from a Floor Interior Services, Corp. field representative.

By executing this Contract, Independent Contractor acknowledges that the applicable Reference Guide, including the payment of any required fees, is a part of and incorporated into this Contract.